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Case Number: 26STCV00526 Hearing Date: September 10, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Motion for Summary

Adjudication

The Motion for Summary Adjudication is denied.

BACKGROUND

Plaintiff Karen Petrosov (Plaintiff) filed this action against Tanya Kurliyand (Kurliyand), Steven Kamenetsky (Steven), and Michael Kamenetsky (Michael) (collectively, "Defendants"), alleging that he holds record title to a residence at 4908 Hesperia Avenue in Encino (the Property), that Defendants displaced him from it, and that Defendants claim the Property as their own.

The causes of action in the Verified First Amended Complaint (FAC) are:

(1) Quiet Title; (2) Ejectment; (3) Declaratory Relief; (4) Trespass; (5) Conversion; and (6) Intentional Infliction of Emotional Distress.

Plaintiff filed a Motion for Summary Adjudication of the first, second, and third causes of action. Defendants filed an Opposition. Plaintiff filed a Reply.

REQUEST FOR JUDICIAL NOTICE

Plaintiff requests judicial notice of Exhibits 3 through 13 to the Declaration of John W. Martin, certified copies of 11 instruments recorded in the Official Records of Los Angeles County: five grant deeds, three deeds of trust, an abstract of judgment, and two notices of state tax lien. (RJN, at pp. 2-3.) Defendants' Response to Plaintiff's Separate Statement recites that an

opposition to the request was filed concurrently with it. (Response to Separate Statement, at p. 1:19-20.) None was filed.

A recorded instrument is an official act of the executive branch, and the request is granted as to each exhibit. (Evid. Code, § 452, subds. (c), (h), § 453; Ragland v. U.S. Bank National Assn. (2012) 209 Cal.App.4th 182, 194.) Judicial notice of a recorded instrument extends to “the fact of a document’s recordation, the date the document was recorded and executed, the parties to the transaction reflected in a recorded document, and the document’s legally operative language,” and the Court “may deduce and rely upon the legal effect of the recorded document, when that effect is clear from its face.” (Linda Vista Village San Diego Homeowners Assn., Inc. v. Tecolote Investors, LLC (2015) 234 Cal.App.4th 166, 185.)

EVIDENTIARY OBJECTIONS

The Court rules on Defendants’ objections to the Declaration of Karen Petrosov as follows:

Objections 1 through 12. Overruled.

The Court rules on Plaintiff’s objections to the Declaration of Michael Kamenetsky as follows:

Objections 1, 2, 4, 5, 6, 7, and 8. Overruled.

Objection 3. Sustained. Lack of personal knowledge. (Evid. Code, § 702, subd. (a).)

LEGAL STANDARD

Summary judgment is proper only where no triable issue of material fact exists and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) A plaintiff moving for summary judgment “bears the burden of persuasion that ‘each element of’ the ‘cause of action’ in question has been ‘proved,’ and hence that ‘there is no defense’ thereto.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850 (Aguilar).)

A plaintiff “has met that party’s burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action

entitling the party to judgment on the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(1).) Only then does the burden shift to the defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense. (Ibid.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1518.) The burden does not shift merely because no opposition was filed. A motion that fails to make that showing is denied whether or not it is opposed.

A party may also move for summary adjudication of one or more causes of action or affirmative defenses. The motion “shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).) A motion for summary adjudication proceeds in all procedural respects as a motion for summary judgment. (Id., subd. (f)(2).)

ANALYSIS

I. Scope of Pleadings

Plaintiff argues on reply that Defendants’ resulting-trust theory, under which Leonid Kamenetsky (Leonid) retained beneficial ownership of the Property after conveying legal title to his corporation in 2012, is outside the issues framed by the FAC and the Answer, because the Answer pleads no such theory and Plaintiff had no notice of it when he filed the Motion.

“The pleadings delimit the scope of the issues on a summary judgment motion. [Citation.] A party may not oppose a summary judgment motion based on a claim, theory, or defense that is not alleged in the pleadings.” (Cal. Bank & Trust v. Lawlor (2013) 222 Cal.App.4th 625, 637, fn. 3 (Lawlor).)

The rule reaches the new matter an answer must plead. “The phrase ‘new matter’ refers to something relied on by a defendant which is not put in issue by the plaintiff. . . . Where, however, the answer sets forth facts showing some essential allegation of the complaint is not true, such facts are not ‘new matter,’ but only a traverse.” (State Farm Mut. Auto. Ins. Co. v. Superior Court (1991) 228 Cal.App.3d 721, 725.) Facts that “‘directly tend to disprove’” an allegation of the complaint may be offered under a general denial; only facts that “‘establish a defense independently of them’” are new

matter. (Walsh v. West Valley Mission Community College Dist. (1998) 66 Cal.App.4th 1532, 1546.)

A quiet title complaint must state “[t]he title of the plaintiff as to which a determination under this chapter is sought and the basis of the title.” (Code Civ. Proc., § 761.020, subd. (b).) The court “shall examine into and determine the plaintiff’s title against the claims of all the defendants.” (Code Civ. Proc., § 764.010.) The plaintiff’s title is therefore the element the plaintiff must prove, and the judgment sought is a determination that the defendant’s adverse claim is without right.

Here, Defendants’ theory is a traverse. Plaintiff alleges that he is the sole owner of the Property in fee simple, that his title is superior to any claim of Defendants, and that Defendants have no estate, right, title, or interest adverse to him. (FAC, ¶¶ 51-56.) Defendants denied those allegations. (Martin Decl., Ex. 14, ¶¶ 9-13, 51-57; Michael Kamenetsky Answer, ¶¶ 9-13, 51-57.) Evidence that Plaintiff holds bare legal title subject to a beneficial interest that Leonid retained, and that Defendants now claim through the Kamenetsky Revocable Living Trust (the Trust), directly tends to disprove the allegation of full ownership. It does not establish a defense independent of that allegation. Plaintiff himself relies on the Answer’s admission that Defendants claim to be the rightful owners of the Property to establish the adverse claim his cause of action requires. (Separate Statement, Fact 24; Martin Decl., Ex. 14, ¶ 53.) Michael’s Answer, moreover, pleads a claim of interest in the Property under Code of Civil Procedure section 761.030, subdivision (a)(1). (Michael Kamenetsky Answer, at p. 2:6-10.) Therefore, the general denials admit the evidence.

Plaintiff was not required to negate Defendants’ theory of a retained beneficial interest to carry his initial burden. However, Defendants may offer evidence of that interest to show a triable issue on the element of title itself. (Code Civ. Proc., § 437c, subd. (p)(1).) Plaintiff’s contention that he lacked notice of the theory fails for the same reason. The general denials placed his title, legal and beneficial, in issue, and whether the Verified First Amended Cross-Complaint pleaded the same theory before or after the Motion was filed does not change what the Answer put at issue. The Court therefore considers Defendants’ evidence of a retained beneficial interest in deciding whether a triable issue exists.

II. Quiet Title

Plaintiff contends that the recorded chain of title establishes his sole legal title, that Evidence Code section 662 therefore presumes his full beneficial title, and that Defendants cannot produce clear and convincing evidence of a competing interest.

Defendants argue that section 662 does not apply where the validity of title is challenged, that their evidence in any event rebuts the presumption, and that a quiet title action adjudicates equitable as well as record interests.

Plaintiff replies that section 662 applies because Defendants accept the deeds and dispute only beneficial ownership, that a resulting trust arises from the circumstances of the transfer and not from later conduct, and that Defendants' post-conveyance evidence is equivocal.

A. Legal Title

An action to quiet title may be brought "to establish title against adverse claims to real or personal property or any interest therein." (Code Civ. Proc., § 760.020, subd. (a).) Evidence Code section 662 provides: "The owner of the legal title to property is presumed to be the owner of the full beneficial title. This presumption may be rebutted only by clear and convincing proof." The section "has application, by its express terms, when there is no dispute as to where legal title resides but there is question as to where all or part of the beneficial title should rest." (Murray v. Murray (1994) 26 Cal.App.4th 1062, 1067 (Murray).) It "does not apply, however, when title itself is challenged as not genuine." (People v. Semaan (2007) 42 Cal.4th 79, 88.)

Here, Plaintiff established legal title. Leonid acquired the Property by grant deed in 2009 as his sole and separate property, and Kurlyand conveyed any community interest to him by interspousal transfer deed. (Martin Decl., ¶¶ 7-8, Exs. 3-4; Petrosov Decl., ¶ 12.) Leonid conveyed the Property to VIP Bail Bonds Corporation (VIP) by grant deed in 2012. (Martin Decl., ¶ 9, Ex. 5.) VIP conveyed it to Asset Managment LLC (the LLC) in July 2025, and the LLC conveyed it to Plaintiff by grant deed recorded November 17, 2025. (Martin Decl., ¶¶ 10-11, Exs. 6-7.) Counsel's search of the Official Records disclosed no reconveyance from VIP to Leonid and no instrument altering that chain. (Martin Decl., ¶¶ 13-14.) Defendants do not dispute that each conveyance occurred.

(Response to Separate Statement, at pp. 2-4.) Record legal title to the Property is therefore in Plaintiff.

Defendants contend that Leonid continued to hold the beneficial interest after conveying legal title to VIP, a corporation he owned. (Opp., at pp. 7:11-15, 8:18-25; Response to Separate Statement, at p. 3:4-13.) Defendants do not contend that the 2012 deed was forged, void, or ineffective to pass legal title. This is a dispute over where the beneficial title should rest; legal title is undisputed, and section 662's presumption applies to it. (Murray, *supra*, 26 Cal.App.4th at p. 1067.)

Plaintiff's initial burden was to establish each element of his cause of action, and it did not require him to negate Defendants' theory of a retained beneficial interest. Plaintiff carried that burden. He established legal title through an unbroken recorded chain, and as to the 2012 conveyance the presumption of full beneficial title attaches to that showing. (Evid. Code, § 662.) The burden therefore shifted to Defendants to show a triable issue of material fact as to Plaintiff's title. (Code Civ. Proc., § 437c, subd. (p)(1).)

B. Triable Issue

A triable issue exists "if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (Aguilar, *supra*, 25 Cal.4th at p. 850.) As to the 2012 conveyance, the question is whether Defendants' evidence would permit a reasonable trier of fact to find by clear and convincing proof that Leonid retained beneficial ownership. Conduct consistent with ownership is competent evidence of beneficial ownership contrary to record title: a father who paid for property titled in his children, made no rent payments to them, and "at all times conducted himself in a manner consistent with belief in his ownership" held the beneficial interest, and the children "held bare legal title." (Novak v. Novak (1967) 249 Cal.App.2d 438, 442.) Likewise, family members who contributed to the purchase price of property titled in two of them were found to hold equitable interests as beneficiaries of a resulting trust. (Lin v. Jeng (2012) 203 Cal.App.4th 1008, 1018.)

Here, Defendants' evidence, although circumstantial, would permit a reasonable trier of fact to decide the question either way. First, the Property was the Kamenetsky family's residence from 2009 and remained so after the 2012

conveyance to VIP, a corporation Plaintiff acknowledges Leonid wholly owned. (Kamenetsky Decl., ¶ 4; Petrosov Decl., ¶ 12.) Second, the mortgage statements and utility bills Michael attaches are addressed to Leonid at the Property through December 2025, and Michael states that his family paid the mortgage and the household expenses during the period in which Plaintiff claims to have owned the Property. (Kamenetsky Decl., ¶¶ 16-18, Exs. 2-3.) Third, the Property passed from Leonid's corporation to Plaintiff through an entity Plaintiff controlled. The LLC was formed on July 25, 2025, with Plaintiff as its sole member and manager; VIP conveyed the Property to the LLC five days later; and the deed conveying it from the LLC to Plaintiff was recorded on November 17, 2025, while Leonid was hospitalized. (Petrosov Decl., ¶¶ 5, 7, 10; Kamenetsky Decl., ¶¶ 8, 11-12; Martin Decl., Ex. 7.) The LLC's operating agreement provides that "[t]itle to all LLC property will be vested in the name of the LLC and not the name of any individual member." (Petrosov Decl., Ex. B, art. VII(i).) During the same period Leonid's health was declining and a commercial property connected with his businesses faced foreclosure. (Kamenetsky Decl., ¶ 6.) Finally, Plaintiff and his family moved into the Property while the Kamenetsky family was at the hospital with Leonid and with the family's belongings still in the home. (Kamenetsky Decl., ¶ 13.)

Taken together, that evidence supports an inference that VIP and then the LLC held record title for Leonid's benefit. A reasonable trier of fact could find by clear and convincing proof that Leonid retained the beneficial interest through the 2012 conveyance. The Court concludes that a triable issue of material fact exists as to Plaintiff's title.

Plaintiff argues that a resulting trust arises from the circumstances existing when the transfer occurs and that Defendants identify no arrangement contemporaneous with the 2012 conveyance. Plaintiff concedes, however, that "[s]ubsequent conduct may have evidentiary significance in corroborating an ownership arrangement arising from the relevant transaction." (Reply, at p. 7:13-15.) Defendants offer the family's continued residence and payment of expenses for that purpose, as circumstantial evidence of the intent with which Leonid conveyed the Property to his corporation, and conduct of that kind is competent for that purpose. (Novak, *supra*, 249 Cal.App.2d at p. 442.) Nor does the clear and convincing standard change the result on this Motion. That standard governs the trier of fact's ultimate finding; on summary adjudication it governs only whether a reasonable trier of fact could so find. (Aguilar, *supra*, 25 Cal.4th at p. 850.)

Accordingly, the Motion for Summary Adjudication of the First Cause of Action for Quiet Title is denied.

III. Ejectment

Plaintiff contends that his record title carries the exclusive right to possession and that Defendants possess the Property without any lease, license, or judicial authorization.

Defendants argue that the ejectment claim rises and falls with the quiet title claim, because whether their possession is wrongful depends on which party holds the superior right to possession.

Plaintiff replies that occupancy does not establish a legal right to possession superior to the owner's.

"The essential elements of an ejectment action are (1) the plaintiff's valid interest in the property and (2) the defendant's wrongful possession and withholding thereof." (2710 Sutter Ventures, LLC v. Millis (2022) 82 Cal.App.5th 842, 866.)

Here, Plaintiff's right to possession derives from his ownership of the Property, and Defendants dispute ownership itself. Because a triable issue exists as to whether Plaintiff holds the full beneficial title, a triable issue exists as to whether his right to possession is superior to Defendants' and whether their possession is wrongful. Plaintiff's evidence that he demanded possession and that Defendants refused establishes the withholding but not its wrongfulness. (Petrosov Decl., ¶¶ 26-28.)

Accordingly, the Motion for Summary Adjudication of the Second Cause of Action for Ejectment is denied.

IV. Declaratory Relief

Plaintiff seeks a declaration that he is the sole owner of the Property in fee simple, that Defendants have no ownership or possessory interest in it and no right to occupy, control, or interfere with his possession, and that he is entitled to immediate and exclusive possession.

Defendants argue that the requested declaration cannot be separated from

the disputed facts surrounding Plaintiff's acquisition of title.

Here, the declaration Plaintiff seeks would resolve the same ownership dispute the quiet title cause of action presents. (FAC, ¶ 75.) For the same reasons articulated above, a triable issue of material fact precludes summary adjudication of the Third Cause of Action.

Accordingly, the Motion for Summary Adjudication of the Third Cause of Action for Declaratory Relief is denied.

CONCLUSION

The Motion for Summary Adjudication is denied.